

06/09/2020

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June 3, 2020

Patrick Whalen, Esq.
109 S. Warren Street
Trenton, NJ 08608

Re: **B.B. v. Mell, et. al.**
Docket No. ESX-L-7200-19

Dear Mr. Whalen:

Plaintiff hereby amends her answers to interrogatories to include the redacted records of Dr. Daniel Cowan of the Anxiety & Depression Treatment Center, LLC annexed hereto. Please note, all documents provide herein are produced pursuant to the Protective Order entered by the Court on May 27, 2020 and are therefore designated confidential.

The production of the enclosed records in response to defendants' Interrogatories and/or Document Demands does not, nor is intended to, constitute an adoptive admission pursuant to Skibinski v. Smith, 206 N.J. Super. 349, 353-354 (App. Div. 1995).

Very truly yours,

Bruce H. Nagel
BRUCE H. NAGEL

BHN:jb
Enclosure

CC: Harry McEnroe, Esq.
Mark Kundla, Esq.
S. Bradley Mell, *Pro Se*

Anxiety & Depression Treatment Center, LLC

Progress Note- D. Cowen, M.D., Ph.D.

Name: [REDACTED]

Date: January 14, 2020

Time spent: 30 min

CC: f/u treatment for depression and anxiety

Update: pt was last seen in dec 2018. pt stopped lexapro in the spring. mood was good while she was on it. pt graduated from HS. she wanted a year off prior to college. she studied in Paris last semester. she was accepted to villanova for fall 2020. she will be in a volunteer program in S. Africa for the next 2 months. goes at the end of this week. she had looked forward to Paris. however, students were all over the city. she felt isolated. it was hard to see people. she was somewhat depressed. saw a school therapist. however, remained off meds. mood in NJ was initially better. however, it has been hard to be in NJ due neighborhood. however, the man that took advantage of her is in prison for 7yrs. pt wants to resume lexapro. she feels she was happier on it. She is looking forward to the S. African program, but worries she won't have WiFi and will be somewhat isolated. She feels that she is ready to go, and feels safe about it.

Stressors: neighbors. a little from upcoming trip

Med side effects: had none on lexapro

Vegetative symptoms: early awakening-none ; initial insomnia- None; appetite- ok ; energy- "pretty tired" ; concentration- Ok Motivation- "low" ; anhedonia- varies

MSE: appearance- well groomed ; attitude- cooperative

Speech- fluent ; T.P.- goal directed

Mood- "kind of sad" ; affect- a little restricted

Delusions- no ; hallucinations- no

SI- denied ; HI- no

Const- No c/o. Wt 130 (stable). No current meds. Will take anti-malaria meds in S. Africa

ID- no recent illness. Will take an anti-malaria, atavaquone

Assessment:

Mood has been consistently more down since stopped lexapro (no interactions with lexapro). Worth resuming. She feels she is currently doing well enough to go to S. Africa.

06/09/2020

 1/14/20

Plan: 1) Lexapro 5 daily x 1 wk, then 10 daily
2) F/U when back in nj

Education/psychotherapy: Discussed her concerns about going away and possibly being isolated. some anti-malaria meds can affect mood or energy. Lexapro and nausea, sedation, risk of mood worsening, increased sensitivity to etoh. Stop it if has side effects.

06/09/2020

Anxiety and Depression Treatment Center, LLC
2 Worlds Fair Drive, Suite 206, Somerset, NJ 08873
(908)392-0869

Tax ID: 20-8427462

NPI: 1912168192

Service Provided to: [REDACTED]

Date Provided: January 14, 2020

Services Provided:	--X-- 99213	E/M	\$100.00
	--X-- 90833	30 minutes psychotherapy	\$80.00

Daniel Cowen, M.D. - Psychiatrist; N.J. License 25MA06409800; NPI-1659459980

Primary Diagnoses: F33.0

Amount Billed: \$180.00

Amount Paid: \$180.00

Send Check to Subscriber

06/09/2020

[REDACTED]

8/2/01

[REDACTED]

23 CEDAR RD

WHITEHOUSE STN, NJ 08889

(c)

[REDACTED]

06/09/2020

Anxiety and Depression Treatment Center, LLC
2 Worlds Fair Drive, Suite 206, Somerset, NJ 08873
(908)392-0869

Tax ID: 20-8427462 U (U suffix added for Horizon subscribers)

NPI: 1912108192

Service Provided to:



Date Provided: December 27, 2018

Services Provided:	---X---	99213	E/M	\$100.00
	---X---	90833	30 minutes psychotherapy	\$75.00

Daniel Cowen, M.D. - Psychiatrist; N.J. License 25MA06409800; NPI-1659459980

Primary Diagnoses:

F41.1
F32.0

[Handwritten signature]

Amount Billed: \$175.00

Amount Paid: \$175.00

Assignment NOT Accepted

06/09/2020

Anxiety and Depression Treatment Center, LLC
2 Worlds Fair Drive, Suite 206, Somerset, NJ 08873
(908)392-0869

Tax ID: 20-8427462-U (U suffix added for Horizon subscribers)

NPI: 1912108192

Service Provided to:



Date Provided: November 20, 2018

Services Provided:	--X-- 99213	E/M	\$100.00
	--X-- 90833	30 minutes psychotherapy	\$75.00

Daniel Cowen, M.D. - Psychiatrist; N.J. License 25MA06409800; NPI-1659459980

Primary Diagnoses:

F41.1
F32.11

DC

Amount Billed: \$175.00

Amount Paid: \$175.00

Assignment NOT Accepted

06/09/2020

Anxiety and Depression Treatment Center, LLC
2 Worlds Fair Drive, Suite 206, Somerset, NJ 08873
(908)392-0869

Tax ID: 20-8427462 U (U suffix added for Horizon subscribers)

NPI: 1912108192

Service Provided to:



Date Provided: August 28, 2018

Services Provided:	--X-- 90846	E/M	\$100.00
	--X-- 90833	30 minutes psychotherapy	\$75.00

Daniel Cowen, M.D. - Psychiatrist; N.J. License 25MA06409800; NPI-1659459980

Primary Diagnoses:

F41.1
F32.1

2-11

Amount Billed: \$175.00

Amount Paid: \$175.00

Assignment NOT Accepted

06/09/2020

Anxiety and Depression Treatment Center, LLC
2 Worlds Fair Drive, Suite 206, Somerset, NJ 08873
(908)392-0869

Tax ID: 20-8427462 U (U suffix added for Horizon subscribers)

NPI: 1912108192

Service Provided to:



Date Provided: July 18, 2018

Service Provided: ~~---~~ 90792 M.D. performed psychiatric diagnostic interview

Daniel Cowen, M.D. - Psychiatrist; N.J. License 25MA06409800; NPI-1659459980

[Signature]

Primary Diagnoses:

F41.1
F32.1

Amount Billed: \$350.00

Amount Paid: \$350.00

Assignment **NOT** Accepted

Anxiety and Depression Treatment Center, LLC

Practice Policies:

1. If you have a medical or psychiatric emergency and cannot immediately reach Dr. Cowen you should call 911 or go to the nearest emergency room.
2. Proper treatment requires appropriate monitoring. You and Dr. Cowen should agree on the frequency of scheduled sessions. The policy is to be seen, at a minimum, at least every 3 months. Treatment will be considered to have been terminated if this does not occur.
3. If you cannot attend a scheduled session, it is expected that you call to cancel at least 24 hours prior to that session, so that someone else can be scheduled in that time slot. Otherwise, you will be expected to pay the price for that missed session. Insurance companies will not reimburse you for the cost of these missed sessions.
4. Full payment is expected at the time of service.
5. You will be given a receipt for payments made at the time of service. Possible reimbursement by your insurance company depends on your insurance. The Anxiety and Depression Treatment Center, LLC makes no claims as to the amount your insurance company may reimburse you.
6. Dr. Cowen is not an in-network participant with any insurance company and does not participate with Medicare.
7. Effective treatment requires collaboration. Please inform Dr. Cowen if you are experiencing side effects that you feel prevent you from continuing the prescribed medication. Increasing or decreasing doses without physician advice can be dangerous.

I have been given a copy of these practice policies and discussed HIPPA confidentiality policies.

I have also been made aware that unused medication can be dropped off using the website:

<http://www.njconsumeraffairs.gov/meddrop/Pages/Locations.aspx>.



7.18.18 date.

06/09/2020

Anxiety & Depression Treatment Center-LLC

Release of Information

I authorize Dr. Cowen to discuss all aspects of my care and treatment (verbally and in writing) with the following:

Mary Jane Carlin

I can retract this authorization at any time by instructing Dr. Cowen of any changes.

Signature



Date

7.18.18

Anxiety & Depression Treatment Center, LLC
Progress Note- D. Cowen, M.D., Ph.D.

Name: [REDACTED]

Date: December 27, 2018

Time spent: 30 min

CC: f/u treatment for depression and anxiety

Update: pt says that things are mixed. She has good friends from her new school. She will visit them in NY today and then going skiing in NH with them. However, she is stressed by legal situation. He will be in prison for 5 yrs. she hoped for more. He is very wealthy, so she feels he will live his life again after. Also, neighbors support him. Is frustrating. Family will move to NY. Also, mother and sister still depressed. Pt is looking forward to going back to school. Pt is waiting to hear about colleges. Would like to go to vanderbilt. Pt is currently happy with 15 Lexapro. Can be happier when appropriate.

Stressors: Legal situation. Mother and sister depressed

Med side effects: none

Vegetative symptoms: early awakening- no ; initial insomnia- No
appetite- ok ; energy- ok ; concentration- Ok
Motivation- ok ; anhedonia- No

MSE: appearance- well groomed ; attitude- cooperative
Speech- fluent ; T.P.- goal directed
Mood- a little stressed ; affect- a little restricted
Delusions- no ; hallucinations- no
SI- no ; HI- no

ROS:

Const- No c/o

ID- no recent illnesses

Assessment:

Lexapro effective. Mood improved. Better handling stress. Should further improve when gets back to boarding school.

Plan: 1) Lexapro 15 daily
2) F/U when back in nj

Education/psychotherapy: extensively discussed stress of legal situation. Discussed school and family plan to move.

Anxiety & Depression Treatment Center, LLC
Progress Note- D. Cowen, M.D., Ph.D.

Name: [REDACTED]

Date: November 20, 2018

Time spent: 30 min

CC: f/u treatment for depression and anxiety

Update: pt is back for thanksgiving break. she says going to school was in NH was initially scary, but she has done well. has met a lot of female friends. however, she says boys are less friendly. she made the hockey team. however, she worries about what college she will get into. also worries about grades. exams and projects cause anxiety. she feels that gets more stressed than the average person. she has not been sad at school. however, in NJ she can get down from mom who is depressed. she does see friends.

Stressors: mother is depressed. Waiting to hear how man who abused her pleads.

Med side effects: none

Vegetative symptoms: early awakening- no ; initial insomnia- No
appetite- ok ; energy- ok ; concentration- Ok

Motivation- ok ; **anhedonia-** No

MSE: appearance- well groomed ; attitude- cooperative

Speech- fluent ; T.P.- goal directed

Mood- somewhat anxious ; affect- full range

Delusions- no ; hallucinations- no

SI- no ; HI- no

ROS:

Const- No c/o. Wt stable

Skin- facial acne. Is taking minocycline

Assessment:

Lexapro very effective for depression, but less effective for anxiety.
Can increase dose.

Plan: 1) Increase lexapro 15 daily.
2) F/U 6 wks. She will call.

Education/psychotherapy: discussed school. Discussed frustration with man that abused her. Increase in lexapro and sedation, risk of SI- discussed also with mom on phone.

Anxiety & Depression Treatment Center, LLC
Progress Note- D. Cowen, M.D., Ph.D.

Name: [REDACTED]

Date: August 28, 2018

Time spent: 30 min

CC: f/u treatment for depression and anxiety

Update: pt and mother called after last session saying pt had insomnia and a "stomach ache" on lexapro. I suggested taking lexapro with food and in the morning. pt was discussed with mother, today, on phone prior to appt. she felt pt was doing well and is tolerating the lexapro. Pt agrees that she is doing better. Is back from vacation, which she enjoyed. Mood was very good. Is now back in NJ. Mood is still generally good. Is not depressed. However, can be a little sad or irritable at times. Says family is the usual trigger. She is better handling the legal situation. Says is finding it more annoying that sad, which she feel is easier. Pt is looking forward to going to school in NH next week. Has texted some girls from the school, who seem nice. Her younger sister is also going. Pt does say she still has anxiety. Says it "comes and goes". Some is related to going to school next week.

Stressors: going to school next week. Older sister is angry with her.

Med side effects: initially, had insomnia and abd discomfort

Vegetative symptoms: early awakening-no ; initial insomnia- No
appetite- ok ; energy- ok ; concentration- Ok

Motivation- ok ; anhedonia- No

MSE: appearance- well groomed ; attitude- cooperative

Speech- fluent ; T.P.- goal directed

Mood- much less sad. Anxious ; affect- brighter

Delusions- no ; hallucinations- no

SI- "no" ; HI- no

ROS:

Skin- Says facial acne is worse

GI- no longer has abd discomfort

Assessment:

Depression is much improved. Cannot re-assess lexapro efficacy for baseline GAD until after is used to school. can increase lexapro in future if needed.

Plan: 1) Lexapro 10 daily

2) F/U oct 12 at 11:30

Education/psychotherapy: extensively discussed stress of starting new school. discussed stress of legal situation.

Psychiatric Evaluation- ADTC, LLC. D. Cowen, M.D., Ph.D

Name: [REDACTED]

Date: july 18, 2018

Time spent: 60 min

HPI: 16 yo female with h/o anxiety seen with and without mother. mother feels pt has h/o life-long anxiety. but she felt pt coped ok with it. in Dec, 2017 mother became aware through HS that pt had been having a relationship with an older man. that man was a family friend. school notified police. FBI and police investigated and man is arrested. she says pt is very anxious. she is frequently sad and has expressed SI. friends are not supportive and she has lost friends. man has been vindictive. she is going to change schools and go to boarding school in NH in fall.

pt says she had some social anxiety that she "grew out of". had separation anxiety as a little kid. she says she has been generally a worrier. would be very anxious when unprepared. the man, Brad, was the father of sisters best friend. so she has known Brad the past 6 yrs. he became a friend of her parents 3 yrs ago. last summer she started having a relationship with him. it started out on social media. she knew he had had a relationship with her sister (she was 17). parents also knew. in sophomore year (catholic school) had bullying. was told she was ugly. Brad was supportive and that lead to a relationship. she felt coerced to have sex and was unhappy the whole time. also, did not like lying to family. Brad was arrested May 9 after the FBI investigation. during that investigation, he contacted her and family and was threatening to them. she says the FBI is aware. her 2 best friends stopped talking to her. she is not sure why. kids at school did not find out, so we're not worse than before. however, she wants to leave this area. so, she will fo to boarding school. mood is mostly "sad a lot of the time". cries a lot. has si. says is passive. would not do it.

Stressors: issues with man

Vegetative symptoms: early awakening- yes ; initial insomnia- yes; appetite- up ; energy- "pretty tired" ; concentration- "terrible" in school;

Motivation- "i don't really do anything" ; anhedonia- yes

Name: [REDACTED]

Date: july 18, 2018

Past Psychiatric:

life-long anxiety

started appearing depressed in summer of 2017. started seeing a therapist then, but did not tell him about the man

Therapist: Dr. Mary Jane Carlin since Dec 2017

H/O mania/hypomania- both deny her having periods of high energy and decreased sleep ; H/O chronic anxiety- life-long

H/O OCD- no

Initial Assessment- ADTC, LLC. D. Cowen, M.D., Ph.D

Name: [REDACTED]

Date: july 18, 2018

Past medication:
none

PMH: none
no h/o seizures. has had 3 concussions
chin implant

Last physical and labs: none

Medication: cephalosporin past week (today last day) since chin surgery. no oral contraceptives

Allergies: none

SH:

Married- no ; **lives with both parents and younger sister.** Older sister also home for summer

Tobacco- no

ETOH- was drinking at parties. Has no parties now

Drugs- no

Initial Assessment- ADTC, LLC. D. Cowen, M.D., Ph.D

Name: [REDACTED]

Date: july 18, 2018

MSE: appearance- well groomed ; attitude- cooperative
Speech- fluent ; T.P.- goal directed
Mood- anxious, very sad ; affect- restricted, tearful at
times
Delusions- none ; hallucinations- none
SI- passive. No h/o self harm ; HI- no

ROS:

const: ht- 5'6" wt- 116

Heent: frequent HAs

FH: mat grandmother- anxiety (ativan for sleep).

Assessment:

- 1) major depressive do- single episode, moderate
GAD
- 2). Would benefit from SSRI/SNRI

Plan:

- 1) given Rx to check labs
- 2) Lexapro 5 daily x 1 wk, then 10 daily
- 3) Left voice mail for dr carlin with plan
- 4) F/u aug 28 at 12;00

Education: lexapro and nausea, sedation, FDA SI warning. should wear helmets as is more likely to have a concussion given past concussions.